

Memorandum of Understanding
between
Georgia Vocational Rehabilitation Agency
&
Georgia Department of Behavioral Health and Developmental Disabilities
for
Supported Employment Services Capacity Development

I. Purpose

The purpose of this agreement between the Georgia Vocational Rehabilitation Agency (GVRA), Vocational Rehabilitation Program (VRP) and the Georgia Department of Behavioral Health and Developmental Disabilities, Division of Developmental Disabilities (DBHDD/DD) is to enhance the delivery of services in accordance with federal and state statutes in a coordinated manner to maximize individual choice and satisfaction, and the efficient use of resources that promotes best practices and increases employment outcomes for individuals with developmental disabilities.

II. Terms of Agreement

Through collaboration and cooperation in the development of individualized plans for employment, delivery of planned services, and activities related to obtaining and maintaining employment, GVRA/VRP Counselors and DBHDD/DD Planning List Administrators (PLA) will avoid duplication of services to eligible participants. GVRA/VRP Counselors, PLA and/or DBHDD/DD Supported Employment providers will share information and coordinate activities (with the individual's written authorization to release information), as appropriate and in accordance with applicable statutes, regulations and policies to carry out and support this agreement. These activities, services and records shared will be provided in a timely and accurate manner.

III. Authority

GVRA/VRP: Title I and Title VI, Part B, of the Rehabilitation Act of 1973, as amended, 29 U.S.C. 701 et seq., and implementing regulations at 34 C.F.R. Parts 361 and 363, with respect to the rehabilitation needs of individual with "most significant disabilities" as defined therein, and their need for supported employment services.

DBHDD: O.C.G.A. 37-1-20(5) states that the Department of Behavioral Health and Developmental Disabilities shall "Have authority to contract for services with community service boards, private agencies, and other public entities for the provision of services within a service area so as to provide an adequate array of services and choice of providers for consumers and to comply with the applicable federal laws and rules and regulations related to public or private hospitals; hospital authorities; medical schools and training and educational institutions; departments and agencies of this state; county or municipal governments; any person, partnership, corporation, or association, whether public or private; the United States government or the government of any other state."

IV. Points of Collaboration

A. Provision of Developmental Disabilities Services

- DBHDD/DD may refer individuals from the Planning List who desire Customized/Supported Employment services to GVRA/VRP for eligibility determination.
- GVRA/VRP may refer individuals who need Customized/Supported Employment services to DBHDD/DD for eligibility determination for Medicaid waiver and/or family support services.

B. Provision of Supported Employment Services

- DBHDD/DD will refer a minimum of thirty (30), maximum of one hundred and twenty (120) individuals statewide to participate in the Customized/Supported Employment services during the first year of this agreement with a revaluation annually to determine if referral numbers need to be adjusted thereafter.
- GVRA/VRP, DBHDD/DD, and each individual will work together to define the vocational goal and identify needed supports for GVRA/VRP to develop the Individualized Plan for Employment (Work Plan) for Supported Employment or Customized Supported Employment services.
- GVRA/VRP may refer eligible GVRA/VRP clients to a Customized/Supported Employment Provider (approved by both GVRA/VRP and DBHDD/DD) to receive Customized/Supported Employment Services, following completion of an approved Work Plan. Customized/Supported Employment Services include, but are not limited to: discovery, job development, job coaching, benefits planning, and on-going supports necessary for successful employment. Funding for the provision of planned Customized/Supported Employment Services to GVRA/VRP clients will be provided by GVRA/VRP and paid directly to the Customized/Supported Employment provider (for up to 18 months after the job is secured).
- GVRA/VRP will hire a total of 12 Rehabilitation Counseling Professionals state-wide to serve referred individuals. These dedicated VR Professionals will be responsible for overall case management, authorizing and monitoring CSE/supported employment, working with the high school staff, Department of Education (DOE) and parent advocacy groups to provide Medicaid Waiver information, identify individuals who desire SE services and assist with facilitating a seamless transition from school to work.
- GVRA/VRP will hire four (4) full-time dedicated Certified Benefits and Resource Specialists for the purpose of providing SSI/SSDI, Medicaid, Medicare, and other benefits counseling for individuals desiring employment and navigating eligibility for and/or interaction with multiple benefits systems.

C. Community of Practice Development

- GVRA/VRP will establish and maintain community of practice website for the purpose of promoting supported employment and other best practices for individuals with significant disabilities. This website will include a listing all approved DD/VR SE providers, calendar of SE events and pertinent SE information for families and advocates of SE services to view.

- GVRA/VRP will provide continuous CSE/SE training at least once per quarter for SE providers, VR/DD staff, and families of SE services. GVRA will also provide technical assistance to VR/DD service providers who have documented deficiencies in quality of service.

D. Provision of Extended Support Services

- When an individual receiving GVRA/VRP and DBHDD/DD services completes the objectives of the GVRA/VRP Customized/Supported Employment Work Plan, the individual will continue to receive from DBHDD/DD providers extended support services based on the Individualized Support Plan and needed to maintain successful employment for the life of the job.
- The individual will continue to receive DBHDD/DD support services which may include, but are not limited to: job negotiations and job coaching and other supports required to maintain employment, as long as the services are required and the individual remains eligible for the services as defined by DBHDD/DD eligibility criteria.

V. Methods of Provision of Records and Services

- DBHDD/DD will obtain a signed authorization for release of information from each individual referred to GVRA/VRP for services and will share pertinent information with the GVRA/VRP Counselor but will not disclose information that is not required for provision of Customized/Supported Employment Services including extended support services.
- GVRA/VRP will obtain a signed authorization for release of information from each individual being referred to DBHDD/DD and will share only information that is required for provision of Customized/Supported Employment Services, including extended support services, with the DBHDD/DD Regional PLA and/or Customized/Supported Employment providers
- GVRA/VRP Counselors and DBHDD/DD service providers will notify participating agencies/providers if an individual misses an appointment, drops out, moves from the service area, or fails to comply with stated agency or Work Plan requirements, in accord with the authorization for release of information signed by the individual
- GVRA/VRP will provide DBHDD/DD with a quarterly data report from the GVRA/VR's electronic case-management system. The report will capture detailed information pertaining to: type of employment services provided, number of individuals served, service outcomes, service reimbursement rates and other information pertinent to demonstrate the effectiveness and benefit of this collaboration.

VI. Confidentiality of Records

"DBHDD is a covered entity under the Health Insurance Portability and Accountability Act of 1996 (HIPAA) and the HIPAA Privacy Rule, 45 C.F.R. Parts 160 and 164, and is also required to follow federal regulations on Confidentiality of Alcohol and Drug Abuse Patient Records at 42 C.F.R. Part 2, as well as Georgia mental health confidentiality laws in Title 37 of the Georgia Code. DBHDD will comply with these confidentiality requirements as applicable to records and information that it uses or maintains in connection with this Agreement.

GVRA/VRP will comply with the following confidentiality requirements as applicable to records and information that it uses or maintains in connection with this Agreement: GVRA/VRP is required to comply with federal regulations regarding confidentiality, at 34 C.F.R. §361.38, and Georgia law, at O.C.G.A. §49-9-16; which are operationalized at GVRA/VRP Client Services Policy Manual (CSPM) §§ 118, 120, and 122, and CSPM §124, pertaining to case file security and destruction. In addition, GVRA/VRP Certified Rehabilitation Counselors are expected to perform in compliance with the Certified Rehabilitation Counselor Commission Professional Code of Ethics for Rehabilitation Counselors.

VII. Methods for Referring Individuals Between/Among Participants

- A referral form will be utilized to initiate services between partners.
- DBHDD/DD Regional PLA will send the referral to GVRA/VRP with case information needed to determine GVRA/VRP eligibility, which will include an authorization to release information signed by the referred individual, diagnostic information, and functional evaluation signed by the appropriate practitioner. DBHDD/DD will disclose only information that is required for provision of Customized/Supported Employment Services, including extended services.
- GVRA/VRP will send the referral to the Regional Intake Coordinator with case information needed to determine or assist with DBHDD/DD eligibility, which includes a release of information. Progress reports will be shared with appropriate DBHDD/DD service providers.
- Sixty (60) days prior to case closure, GVRA/VRP will transition the individual to DBHDD/DD provider for extended support services for the life of the job, and continuation of support services required for the individual to successfully maintain employment, for as long as the individual desires and qualifies for the service.

VIII. Eligibility Criteria for GVRA/VRP

The individual must meet the basic eligibility criteria and be eligible for an open order of selection priority category as defined in the GVRA/VRP CSPM (Section 210) and determined by the GVRA/VRP Counselor. The individual must also meet the eligibility requirements for Supported Employment as defined in the GVRA/VRP CSPM (Section 416) and determined by the GVRA/VRP Counselor. The CSPM may be found at

<http://www.vocrehabga.org/cspm/cspm.html>.

IX. Eligibility Criteria for DBHDD/DD

The individual must meet the DBHDD/DD eligibility criteria as stated in the Division of Developmental Disabilities Service Enrollment Application.

X. Funding and Obligations

DBHDD-DD proposes to provide to GVRA/VRP \$518,090 in state dollars for the provision of employment related services and supports, including Supported Employment and Customized Supported Employment, to transition-aged youth who meet DD-ID eligibility criteria. GVRA/VRP will utilize these state funds to match Title I funding, resulting in an additional \$1,914,256 of 110 dollars. In summary the total funds available, upon combining \$518,090 of DBHDD State Dollars with \$1,914,256 in GVRA/VRP 110 Federal funds drawn down as match for the project comprise at total of \$2,432,346 available.

Proposed Funding Allocation for DBHDD Dollars:

Personnel:

GVRA Staff	Salary & Benefits (60%)	# Positions	Total Cost
CRC VR Counselor w/ DD Emphasis	\$69,352	12	\$832,224
Benefits & Resource Specialist	\$57,600	4	\$230,400
DD Project Coordinator	\$85,964	1	\$85,964
Sub Total Personnel Costs:			\$1,148,588

Personnel Expenses (Travel, etc):

Personnel Administrative Costs (20%) \$229,718

Training:

Continuous SE/CE Training \$105,000

Technology:

SE Website "Employ GA" \$5,000

Services:

Services	Service Cost/Individual	# Served	Total Cost
Supported Employment Services	\$7,867	120	\$944,040

TOTAL PROJECT COST: \$2,432,346

Cost-Sharing:

DBHDD (State Funds = 21.3% of Total Project Cost) \$518,090

GVRA (Federal Funds = 78.7% of Total Project Cost) \$1,914,256

TOTAL PROJECT BUDGET \$2,432,346

IX. Effective Date and Termination

This agreement shall become effective upon the last date signed by all parties listed below and shall remain in effect until either party chooses to discontinue. This agreement may be terminated at any time upon 30 days advance notice by one party or the other, and may be amended by the written agreement of both parties, and/or their designees.



Gregory A. Schmieg
Executive Director
Georgia Vocational Rehabilitation Agency

Date 7/23/15



Frank W. Berry
Commissioner
Department of Behavioral Health &
Developmental Disabilities

Date 7/22/15